

Quasi-Checklist: Determining Who Can/Will Be Subject to Mandated Overtime

(Consolidated from Articles 10, 11, 12, and related provisions in the POAM/UMLEA CBA – applies uniformly to **all** bargaining unit employees, including Michigan Medicine Security)

1. When Does Overtime (Including Shift Extensions) Become Mandatory?

- **General rule** (Art 11-5): Overtime is **voluntary** unless:
 - There are **insufficient volunteers, or**
 - Circumstances **do not permit advance notice**.
- The University **may first offer** the overtime to the supervisor of the affected group before mandating it on staff.
- **Shift extensions** are explicitly treated as regular overtime and **can be mandated** (Art 11-8: “the University need not call in an employee... rather than extend the shift of an employee already at work”).

No special prohibition on mandating extensions **two (or more) days in a row** — the short-notice / 48-hour language does **not** apply to extensions (they are excluded from the “detail” definition that triggers double time).

2. Assignment Order for Mandatory Overtime

Use the **overtime log** maintained per unit of distribution (Michigan Medicine Security is its own unit):

1. Offer to **qualified employees** based on **least overtime hours worked** on the current log (reset Jan 1 / May 1 / Sept 1).
2. Tie in hours → assign by **seniority**:
 - Mandatory OT: **least senior** employee.
3. For campus-wide / Division-wide events: can pull from other Ann Arbor units if the hosting campus cannot staff sufficiently (still follows the log/seniority rules).
4. **New/returning employees** (new hire, transfer, or leave ≥ 1 month) are placed at the **mathematical average** of hours on the log.

3. Key Protections / Who Is Generally Shielded from Mandate

- **Pre-approved vacation** (Art 11-5): Cannot be mandated **except in a true emergency** (“sudden, urgent, usually unexpected occurrence... requiring immediate action”).
Routine absenteeism or expected time-off **does not** count as an emergency.
- **Fatigue rules** (Art 11-13/11-14) — University must make “all reasonable attempts” to avoid:
 - 16 hours in any 24-hour period
 - 60 hours in any 7-day period
 - 11 consecutive days without a pass day
(University can override in true emergencies or as permitted by MOU 30.)
- **No pyramiding** of premiums; all overtime (including extensions) follows the same weekly 40-hour threshold.

4. Pay Rate for Mandated Overtime / Shift Extensions

- **Standard:** Time-and-one-half (hourly rate + shift premium) once over 40 compensable hours in the calendar week.
- **Double time** triggers **do NOT** apply to shift extensions (explicitly excluded from “detail” definition).
- Vacation, holiday pay, sick time, Season Days, and Funeral Leave **count** toward the 40-hour weekly total for overtime purposes.

5. Quick Decision Flow for a Supervisor / Employee

1. Is there enough **volunteers** (via overtime log / sign-up)? → If yes, no mandate.
2. If no volunteers / short notice → **mandatory** via least-hours-then-least-seniority.
3. Is the employee on **pre-approved vacation**? → Only mandate in true emergency.
4. Would this push the employee over any **fatigue limit**? → University must make reasonable attempts to avoid, but can still mandate in emergency.
5. Is it a **shift extension**? → Treated exactly like any other overtime; no extra protections or different rate.

Bottom line: Almost any qualified employee can be mandated for overtime or a shift extension when staffing is short — the main constraints are the overtime log/seniority order, vacation protection (except emergencies), and fatigue guidelines. There are **no Michigan Medicine Security-specific exceptions** to these rules.